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GUSTAVO VAZQUEZ, ET AL. v. CHAO, M.D., ET AL.

CASE NO.: 25NWCV02258

HEARING: 08/27/2026 @ 9:30 AM

#12

TENTATIVE ORDER

Defendant Hemant Pande M.D.'s motion for summary judgment is GRANTED.

Moving party to give notice.

Defendant Hemant Pande M.D. (Dr. Pande) moves for summary judgment in his favor.

Background

On June 23, 2025, Plaintiffs Gustavo Vazquez (Gustavo), by and through his Guardian Ad Litem, Michelle Vazquez, and Yamileth Vazquez (Yamileth) (collectively, Plaintiffs) filed this medical malpractice action against Defendants Fu Li Chao, M.D.; Fu Li Chao, M.D., a medical corporation; Hemant Pande, M.D.; PIH Health Downey Hospital; and Does 1 through 50.[1] The complaint alleges that on July 9, 2024, Gustavo underwent an Endoscopic Retrograde Cholangiopancreatography (ERCP) at PIH Health Downey performed by Dr. Pande in which Dr. Chao was the anesthesiologist. (Complaint, ¶ 13.) The

complaint alleges that during the procedure, Gustavo suffered hypoxia that was not appropriately managed by the defendants resulting in a hypoxic brain injury which left Gustavo disabled. (Complaint, ¶ 13.) The complaint asserts two causes of action: (1) medical negligence brought by Gustavo and (2) loss of consortium brought by Yamileth.

Legal Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) In reviewing a motion for summary judgment, courts apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent’s claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue.” (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.)

In moving for summary judgment, a defendant has the “burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) A defendant must support the motion “with evidence including ‘affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of... judicial notice.’” (*Aguilar*, supra, 25 Cal.4th at p. 855, citing Code Civ. Proc., § 437c, subd. (b).)

Once a moving party has satisfied the initial burden of proof, “the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.)

Summary judgment must be granted “if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment

as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119, see also Code Civ. Proc., § 437c, subd. (c).) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Yanowitz v. L’Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1127.)

Discussion

Dr. Pande moves for summary judgment in his favor and against Plaintiffs as to the complaint. This motion is unopposed. Plaintiffs filed a Notice of Non-Opposition expressly stating that they do not oppose this motion.

First

Cause of Action – Medical Negligence

“The elements of a cause of action for medical malpractice are: (1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) a breach of the duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or damage.” (Johnson v. Superior Court (2006) 143 Cal.App.4th 297, 305, citation omitted.) “When a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence.” (Munro v. Regents of University of California (1989) 215 Cal.App.3d 977, 984-985.)

“The law is well settled that in a personal injury action causation must be proven within a reasonable medical probability based upon competent expert testimony. Mere possibility alone is insufficient to establish a prima facie case.” (Jones v. Ortho Pharmaceutical Corp. (1985) 163 Cal.App.3d 396, 402; Jennings v. Palomar Pomerado Health Systems (2003) 114 Cal.App.4th 1108, 1118.) “A possible cause only becomes ‘probable’ when, in the absence of other reasonable causal explanations, it becomes more likely than not that the injury was a result of its action.” (Id., at p. 403.)

Dr. Pande puts forth the declaration of Azam Sayeed Riyaz, M.D. (Dr. Riyaz) to show that Dr. Pande complied with the applicable standard of care. Dr. Riyaz is a physician licensed in the State of California who is board certified in Internal Medicine and Gastroenterology. (Riyaz Decl., ¶ 2.) Dr.

Riyaz has practiced as a gastroenterologist in Southern California since 2002 and has performed hundreds of ERCPs. (Riyaz Decl., ¶ 2.) Dr. Riyaz considered Gustavo's medical records from PIH Health Hospital Downey, Dr. Pande's and Yamileth's deposition transcripts, and the complaint. (Riyaz Decl., ¶ 5.) Dr. Riyaz opines that "Dr. Pande acted appropriately and within the standard of care of a gastroenterologist in his care related to the performance of the ERCP. The patient had a dilated common bile duct and the MRCP revealed stones within the bile duct. Therefore, Dr. Pande appropriately recommended that the ERCP be performed to remove the stones." (Riyaz Decl., ¶ 9.) Dr. Riyaz notes Dr. Pande used the appropriate technique and "was very efficient in performing the procedure as the ERCP took under 13 minutes to complete, and the stones were removed with no evidence of continued issues with bile duct obstruction." (Riyaz Decl., ¶ 10.) Additionally, Dr. Riyaz opines "Dr. Pande was appropriately focused on the procedure at hand, and he was not primarily responsible for the management of any hypoxia during the procedure. Therefore, Dr. Pande appropriately deferred to Dr. Chao as to the type of anesthesia to be used during the procedure, as well as management of the hypoxia." (Riyaz Decl., ¶ 11.)

Dr. Pande additionally submits Dr. Riyaz's declaration to establish that he did not cause Gustavo's injuries. Dr. Riyaz opines "to a reasonable medical probability, that nothing Dr. Pande did or failed to do caused or contributed to any injury by the patient." (Riyaz Decl., ¶ 12.) Dr. Riyaz opines "that the patient suffered a stroke which led to neurological injury. To a reasonable degree of probability, the stroke had nothing to do with the ERCP being performed by Dr. Pande. In this case, the patient suffered a stroke at the end of the procedure, and he was only hypoxic for less than two minutes." (Riyaz Decl., ¶ 13.) Further, "there was nothing that Dr. Pande could have done which would have made any difference in the outcome as the stroke was not likely caused by anything that Dr. Pande did or failed to do." (Riyaz Decl., ¶ 14.)

Based on the declaration of Dr. Riyaz, the Court finds that Dr. Pande meets his burden in showing that he complied with the applicable standard of care and did not cause Gustavo's injuries. As Plaintiffs do not oppose this motion, Plaintiffs do not raise any triable issues of material fact.

Second

Cause of Action – Loss of Consortium

“A cause of action for loss of consortium is, by its nature,
dependent on the existence of a cause of action for tortious injury to a spouse... it stands or falls based on whether the
spouse of the
party alleging loss of consortium has suffered an actionable tortious injury.”
(Hahn v. Mirda (2007) 147 Cal.App.4th 740, 746.)

Based on the Court's finding that Gustavo's medical
malpractice claim against Dr. Pande lacks merit, Yamileth's claim for loss of
consortium against Dr. Pande likewise lacks merit.

Accordingly, Dr. Pande's motion for summary judgment is
GRANTED.

[1] The
Court uses first names because there are multiple parties with the same last
name, not for any recognition or familiarity purposes.